



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S W
Washington, D.C. 20590

MAR 1 1994

DOT-E 10943
(FIRST REVISION)

1. Worthington Cylinder Corporation, Columbus, Ohio is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer certain DOT Specification 39 cylinders containing helium for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of certain DOT Specification 39 cylinders, which may have pressure relief devices not in conformance with the specification requirements, to be filled with helium and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Worthington Cylinder Corporation's application dated February 16 and 28, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Helium, compressed, Division 2.2, UN 1046.

4. PROPER SHIPPING NAME (49 CFR 172.101). Helium, compressed.

5. REGULATION(S) AFFECTED. 49 CFR 173.34(d), 178.65-10.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 39 cylinders having water capacities of 15, 26.7, 29.6 or 51.5 pounds, manufactured by Worthington Cylinders which may have pressure relief devices which do not conform to the requirements contained in §§178.65-10 and 173.34(d). The cylinders have a service pressure of 260 psig; test pressure of 325 psig; and minimum burst pressure of 650 psig. The cylinders were manufactured between April 1 and June 5, 1992 and bear the following identification codes WC2092A through WC2157C and WT2106A through WT2157C.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

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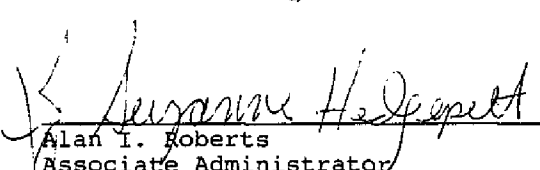
b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100 through 180.

c. Each cylinder must be marked with the manufacturer's serial number, followed by "Helium". In addition, the cylinder must be marked "DOT-E 10943".

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemptions.) In addition, the holder(s) of this exemptions must inform the ASHMS, in writing, any incident involving the package and shipments made under the terms of this exemptions.

10. EXPIRATION DATE. June 1, 1994.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 1 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemptions are permitted. Any alternation of this exemption is prohibited.

Dist: FHWA.